

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 13, 2012

Due to the Veterans Day holiday, the Governing Body of the City of Cheyenne instead convened in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Broyles, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #10 was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 22, 2012. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on October 31, 2012. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Los Abuelos Mexican Restaurant, LLC d/b/a Los Abuelos Mexican Restaurant, 1601 Central Avenue, Cheyenne, Wyoming (License currently held by One East Sixteenth, LLC, 1601 Central Avenue, Cheyenne, Wyoming). Upon inquiry, Imelda Onate with Los Abuelos advised they are hoping to open the restaurant on Dec. 31. Upon further inquiry, Carol Intlekofer, City Clerk, verified a previous extension approved by the governing body of the time frame condition placed on the license, pertaining to a lease agreement with a restaurant establishment to operate within the building, had been met. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the item to Finance Committee.

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on the Town of Burns substitution project to be submitted to the State Loan and Investment Board for the 2011-2012 Countywide Consensus Block Grant funding. Motion (per Consent Agenda) carried. (#5441)

RESOLUTION - Supporting the City of Cheyenne's application for a Land and Water Conservation Fund Grant for the Martin Luther King, Jr. Park Quickstart Tennis Court Project. Mr. Brown moved to adopt, seconded by Mr. Pierson. Upon inquiry, Todd Feezer, Assistant Director, Parks and Recreation Department, provided an update on the project stating the area has been rehabilitated with demolition of the old courts; that new irrigation and sod have been installed, with trees to be planted in the spring, and reviewed grant funding that has been received as well as other anticipated funding. He advised they hope to complete construction in the spring and noted the tennis courts would be located on the west side of the park. Motion carried. Voting "yes" - all members of the governing body. (#5442)

[CA] RESOLUTION - Authorizing the City of Cheyenne to approve and accept the FY2012 Grants to encourage arrest policies and enforcement of Protection Orders Program from the U.S. Department of Justice Office on Violence Against Women in the amount of \$300,000.00 (Award No. 2012-WE-AX-0058). Motion (per Consent Agenda) carried. (#5443)

RESOLUTION - Determining conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the East Half of the East Half (E½E½) of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located approximately 150 feet west of the intersection of Converse Avenue and Ogden Road). Ed Murray, speaking on behalf of Murray Properties, property owner in the vicinity, referenced comments of concern he had voiced at the Oct. 22 City Council meeting, and submitted and discussed 3 hand-outs (on file with City Clerk's office) depicting property involving the proposed annexed area and near vicinity (1. Enlargement of PlanCheyenne Land Use Map; 2. Map of area including parcel owned by Murray Properties; 3. Exhibit D (map) as submitted with the Petition for Annexation). Mr. Murray expressed concerns with inconsistencies in the road network proposed in the maps submitted with the Petition for Annexation relative to the land use map adopted with PlanCheyenne, and explained that the proposed road network submitted with the annexation request would deprive his company of being able to utilize their property for future use as identified in PlanCheyenne and pursuant to zoning classification. He indicated an orderly and coordinated transportation plan must be facilitated as contemplated in PlanCheyenne, and in conjunction with easements acquired during the Storey Blvd. extension project and including collector/connecting streets to allow access. He further commented that the issue involving the road network plan, as proposed as part of the annexation packet, should be addressed through the platting process and not be considered as an approved road plan in conjunction with determining that annexation conditions had been met. Frank Cole, property owner of the parcel proposed for annexation as well as land in the vicinity, referenced and discussed a written agreement of record the Cole family has with the City that laid out accesses off Storey and Converse and water "stub-outs", and stated that, officially, the PlanCheyenne map has no bearing. Reporting for Public Services Committee, Ms. Ash moved to adopt, seconded by Ms. Broyles. Comment was made concerning discussion on the resolution at the last Public Services Committee meeting relative to communication between the property owner, developer, staff and those currently working on an update to the PlanCheyenne document. Upon inquiry regarding the process for updating the Master Transportation Plan, Matt Ashby, Planning Services Director, advised an amendment to the transportation plan would involve a public hearing before the Planning Commission and require a resolution adopted by the governing body, noting public input is allowed throughout the process. Upon further inquiry, Mr. Ashby stated that, at this point, Exhibit D is just a "figure" submitted with the Petition for Annexation and that during the platting process discussions

would be held regarding the road network plan. Brad Emmons, AVI, agent for Scenic Development, Inc. who is planning a development project on the proposed annexed parcel, advised they are trying to ensure they conduct the right traffic study to accompany the platting process relative to a collector vs. local road, and expressed they feel they can separate the long range master plan from the proposed development action. Upon inquiry, Mr. Emmons stated that depictions in Exhibit D matches existing curb cuts and stub-outs, and commented that Exhibit D labels the road in question as E. Carlson Street but that street name is for reference only and not necessarily the final street name. Comments followed regarding request for postponement of the item, as previously received by AVI, which would have allowed time for further information to be acquired vs. adoption of the resolution; frustration and concerns with incremental annexations/additions relative to the road network system; recent detention pond construction near East Carlson Street and land in the area being located in the county and not within city limits, and area street network addressing future growth for the community's health, safety and welfare. Mr. Emmons explained the purpose of the request to postpone was to provide for the annexation ordinance to coincide with timing of re-zoning and preliminary and final plat processes, and advised of the options available regarding postponement of the resolution vs. delaying the introduction of the annexation ordinance. He verified preference for adoption of the resolution at the present meeting; stated timing is critical for Scenic Development, regarding resolution approval, to enable them to move forward with project financing, and noted delaying ordinance introduction would provide time to work on the road network issue. Mr. Cole provided a brief history on certain road alignments and configurations in the area, including accesses on Storey and Converse and distance between access points, and commented on topography problems, infrastructure, Cole family working with the City for numerous years on many developments, and the recent detention area. Discussion topics included: Location of the detention area (within Section 21); road network system and effect on future area development as well as Murray Properties parcel; whether adoption of the resolution legally mandates approval of the future annexation ordinance that will be submitted, and effect of any changes in conditions that may occur following resolution adoption. Upon inquiry regarding whether adoption of the resolution compels a favorable vote on the ensuing annexation ordinance, Dan White, City Attorney, stated that pursuant to comments that have been made a situation is developing whereby he needs to advise the governing body that he may have a conflict of interest (family related) involving a concerned party to the discussions and that the question should be referred to another staff attorney or outside counsel, and indicated he was declining to render any legal advice on the question posed at this time. Upon a hypothetically phrased general question with regard to whether the governing body adopts a resolution determining that an area meets all six conditions for annexation, is the governing body then compelled to vote for the related annexation ordinance, Mayor Kaysen requested Mr. White reply to the inquiry on a process basis only. Mr. White advised it would be helpful to conduct legal research on the topic, and stated his initial impression is if the governing body adopts a resolution that finds that the Wyo. Stat. § 15-1-402(a) annexation criteria have been met, the governing body could not later make a different finding in the absence of a significant change of circumstances that would provide a substantive basis for the change. Comments followed and included: State statute wording regarding action on annexation ordinances; past actions on annexation ordinances following resolution adoptions determining that conditions had been met; further legal review, and reason for postponing action at some point in the annexation process to coincide with re-zoning and platting. Mr. Allen moved to amend, seconded by Mr. Collins, by adding the following language within the proposed resolution: "The approval of this resolution is not intended to and shall not be construed as modifying any of the components of the Cheyenne Area Master Transportation Plan contained within PlanCheyenne, adopted in November 2006". Mr. Cole spoke in opposition to the amendment, commenting that if the amendment is

approved the same wording should be included in other future annexation related resolutions. Mr. Murray spoke in support of the amendment, commenting that any transportation network plan should comply with long range transportation plans adopted by the City and that the area is a very important part of the community and its growth. Discussion followed on the percentage of the area being discussed vs. percentage of the proposed annexation property; use of land by property owners relative to City and County boundaries; support for planning efforts, and whether resolution adoption would be a commitment to the road plan depicted in Exhibit D. Upon inquiry, Mr. Ashby expressed his belief that definitive action on a road plan takes place during the platting process and that the master (transportation) plan is intended to provide for having a road network in place and serves as a guideline for open discussion to meet transportation needs. Mr. Murray commented that the amendment would provide a history to those new members of the governing body who will be addressing the annexation ordinance next year. Further comments included the topics of road network configuration; property owners' competing interests, and potential changes to Plan Cheyenne due to the current review being conducted. Motion to amend carried. Voting "yes" -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Mr. Valdez and Mayor Kaysen. Voting "no" -- Ms. Ash, Dr. Rinne and Mr. Spiker. Discussion on the main motion, as amended, followed and included the following topics: Conditions/criteria being met for annexation vs. Exhibit D as a street issue, overall area development for best interests of the community, and school district student capacity and communication with the school district with regard to the development (apartment complex) planned for the parcel proposed to be annexed. Mr. Collins noted, for the record, that he hoped if the governing body changes its mind in the future (City Clerk note: Regarding resolution adoption and future annexation ordinance action) that it will not be considered to be arbitrary or capricious as the discussion record reflects governing body's concerns about the roads in the area and that an update to the Master Transportation Plan may be made to reflect area arterial and collector roads. Also during discussion, Mr. Emmons again reviewed postponement options to align with the platting time frame, advising the goal is to start development project construction next spring. Main motion as amended carried. Voting "yes" -- all members of the governing body with the exception of Dr. Rinne voting "no". (#5444) Following announcement of the vote, Mayor Kaysen requested all interested parties continue to look at the road networking, safety and topography issues to resolve.

[CA] RESOLUTION - Authorizing the Governing Body of the City of Cheyenne to adopt the revised statement of investment policy. Motion (per Consent Agenda) carried. (#5445)

RESOLUTION - Authorizing the Mayor and the City Clerk to execute: a State Small Business Credit Initiative ("SSBCI") Allocation Agreement with the United States Department of Treasury; a Cooperative Agreement among seventeen Wyoming Municipalities to provide for the administration of SSBCI funding in accordance with Federal requirements; and a Service Agreement under which Wyoming Smart Capital Network, LLC, will assist in implementation and oversight of SSBCI Program Funding -- referred to Finance Committee. Mr. Brown advised the item was reviewed under other items for the agenda at the Nov. 5th Finance Committee meeting and provisions of Title 2, City Code, had been met. Mr. Brown moved to adopt, seconded by Mr. Valdez. Upon inquiry, Dan White, City Attorney, advised City Council had previously reviewed 3 agreements affiliated with the resolution and since the form of some of the agreements had changed he felt the governing body should review again for approval. He further clarified the changes strengthen provisions in favor of the participating municipalities. Motion carried. Voting "yes" -- all members of the governing body. (#5446)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Chaplin Park Annex, a replat of Lots 1-6 and the 16-foot vacated alley, Block 16, Park Addition, Cheyenne, Wyoming (located between Richardson and Cosgriff Courts, and between Dey Avenue and Ames Court) -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Directing the Solid Waste Division to provide curbside collection services for automated containers for all residential addresses in the city, except for certain addresses where curbside collection is not feasible -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Approving Outside User Water/Sewer Services, by User's Agreement, with the Microsoft Corporation, Lot 3, Block 6, North Range Business Park, Third Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Agreement between the City of Cheyenne and RBC Global Asset Management (U.S.) Inc. to provide investment advisory services (Solid Waste, 2007-2010, 2011-2014 1% Sales Tax & 1% Specific Purpose Tax). Motion (per Consent Agenda) carried. (#5925)

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center for use of a 2006 Chevrolet El Dorado bus for services for Stride clients -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Parks & Recreation Department, and AVI, PC for design and engineering services on Polk Avenue greenway segment (1% Specific Purpose Sales & Use Tax & Wyoming Business Council Community Enhancement grant) -- referred to Finance Committee.

[CA] Second Amendment to Contract #4966 between the City of Cheyenne and Saddle Ridge, LLC, pertaining to Saddle Ridge Subdivision greenway system improvements. Motion (per Consent Agenda) carried. (#4966)

[CA] Consideration of Bid #M-3-13 for a contract between the City of Cheyenne, Parks and Recreation Department, and S & S Builders, LLC, Cheyenne, Wyoming, for the Pioneer Park Parking Lot Improvement Project (Parks Facilities funds) -- referred to Finance Committee.

Appointments of Robert Mathia and Melissa Leger to the Downtown Development Authority Board. Mr. Brown moved to approve, seconded by Mr. Collins. Upon inquiry, Mayor Kaysen clarified the appointments are to fulfill terms for individuals who were not able to complete their appointed term, and explained the appointment process that involves review and recommendation of proposed appointees by the Downtown Development Authority Board. Motion carried. Voting "yes" -- all members of the governing body with the exception of Ms. Ash and Dr. Rinne voting "no" and Mayor Kaysen who did not vote (Mayoral appointments).

[CA] Authorization to purchase Utility Rocket 5GHZ quadband communication equipment in the

amount of \$167,999.72 from CDW- G for the Cheyenne Police Department (SLIB Funding). Motion (per Consent Agenda) carried (amount not to exceed \$167,999.72).

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the 2013 Wyoming Association of Municipalities Winter Workshop Business Meeting -- referred to Finance Committee.

Announcement was made of the appointment of Carla Thurin to the Laramie County Community Juvenile Services Joint Powers Board to be confirmed November 26, 2012.

Under other City business:

Brad Harrington commented on discussion held previously during the meeting regarding the Resolution for conditions for annexation and stated he feels the entire planning process should be reviewed. He also expressed his belief that the City-owned area of the “downtown hole” should either be sold or given away to those owning the other 2/3rds portion.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:29 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
November 24, 2012